

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF RICHMOND

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LASOU KUYATEH,

Plaintiff,

-against-

CITY OF NEW YORK, and NYPD Police Officers KYLE  
ERICKSON, ELMER PASTRAN, and FRANK  
DESIDERATO, in their individual capacities

Defendants.  
----- X

**VERIFIED COMPLAINT**

Index No. 152853/2019

Plaintiff LASOU KUYATEH, by and through his attorneys, Jason Leventhal, Esq., and  
Joshua S. Moskovitz, Esq., as and for his complaint alleges as follows:

**JURISDICTION**

1. Plaintiff asserts claims under New York State common law and for violations of his rights under Article 1 § 12 of the New York State Constitution.
2. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

**VENUE**

3. Venue is proper in Richmond County pursuant to C.P.L.R. § 503(3) as this is an action against the City of New York and its officers, and New York County is where the events giving rise to this action took place.

**JURY DEMAND**

4. Plaintiff demands a trial by jury in this action on each and every one of his claims for which jury trial is legally available.

**THE PARTIES**

5. Plaintiff LASOU KUYATEH is a citizen of the United States and presently resides in the State of Delaware.

6. At all times relevant times herein, Plaintiff was a resident of Richmond County, New York.

7. Defendant THE CITY OF NEW YORK (“the City”) is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain, manage, supervise, and control a police department, and does maintain the New York City Police Department (“NYPD”).

8. The NYPD is a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the governing law, rules, and regulations of the City.

9. Upon information and belief, at all relevant times, defendants NYPD Police Officers KYLE ERICKSON, ELMER PASTRAN, and FRANK DESIDERATO were citizens of the United States and the State of New York.

10. At all relevant times, ERICKSON, PASTRAN and DESIDERATO were employed by the City and acted under color of law.

11. At all relevant times, ERICKSON, PASTRAN and DESIDERATO acted in the course and scope of their duties and authority as an officer, agent, servant, and employee of the NYPD and the City.

12. At all relevant times, ERICKSON, PASTRAN and DESIDERATO were officers assigned to the 120<sup>th</sup> Precinct, located in Richmond County.

13. At all relevant times, ERICKSON, PASTRAN and DESIDERATO violated plaintiff's clearly established rights under the Article 1 § 12 of the New York State Constitution, of which a reasonable law enforcement officer in defendants ERICKSON, PASTRAN and DESIDERATO's circumstances would have known.

**COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW**

14. Plaintiff served his Notice of Claim upon the City of New York by electronic delivery as prescribed by the Office of the New York City Comptroller on December 31, 2018, within ninety days of certain of plaintiff's claims.

15. Defendant City acknowledged receipt of plaintiff's claim and assigned it claim number 2018PI036428.

16. On June 17, 2019, Defendant City conducted an examination of Plaintiff pursuant to New York General Municipal Law § 50-h.

17. More than thirty days have elapsed since service of Plaintiff's notice of claim and supplemental notice of claim and adjustment or payment of Plaintiff's claim has been neglected.

18. This action was commenced within one-year and ninety-days after the events giving rise to plaintiff's claims.

**STATEMENT OF FACTS**

19. On October 3, 2018, at approximately 3:00 p.m. in the vicinity of Targee Street and Vanderbilt Avenue, Staten Island, New York, defendant NYPD Police Officers KYLE ERICKSON, ELMER PASTRAN and FRANK DESIDERATO conspired to falsely accuse plaintiff of felony possession of a firearm.

20. ERICKSON, PASTRAN and DESIDERATO then caused plaintiff to be falsely arrested by falsely alleging they observed plaintiff hand a firearm to an unapprehended individual.

21. As a result of these false allegations, NYPD officers approached plaintiff, pointed their guns at plaintiff and placed over tight handcuffs on plaintiff's wrists.

22. NYPD officers transported plaintiff to the NYPD's 120<sup>th</sup> precinct and imprisoned him in a holding cell, while he was restrained by said over tight handcuffs, until approximately 11:00 p.m.

23. At approximately 11:00 p.m., NYPD officers released plaintiff without charging plaintiff with committing any crime or offense.

24. As a result of the foregoing, plaintiff suffered, *inter alia*, the loss of liberty, psychological injuries, pain and suffering, emotional distress, and the deprivation of his constitutional rights.

**FIRST CAUSE OF ACTION**  
**False Arrest/Imprisonment**

25. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

26. Defendants ERICKSON, PASTRAN and DESIDERATO, through the foregoing acts, caused plaintiff to be wrongfully detained without good faith, reasonable suspicion, probable

cause, or legal justification,

27. Plaintiff was aware of this detention and did not consent to it.

28. Defendants ERICKSON, PASTRAN and DESIDERATO committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

29. THE CITY is vicariously liable for the conduct of Defendants ERICKSON, PASTRAN and DESIDERATO.

## **SECOND CAUSE OF ACTION**

### **Assault**

30. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

31. Defendants ERICKSON, PASTRAN and DESIDERATO placed or caused plaintiff to be placed in apprehension of imminent harmful and offensive bodily contact by causing him to be handcuffed, and imprisoned.

32. NYPD detective John Doe placed or caused plaintiff to be placed in apprehension of imminent harmful and offensive bodily contact.

33. As a result of defendants ERICKSON, PASTRAN and DESIDERATO's conduct, plaintiff was placed in apprehension of imminent harmful and offensive bodily contact and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

34. THE CITY is vicariously liable for the conduct of defendant ERICKSON, PASTRAN and DESIDERATO.

**THIRD CAUSE OF ACTION****Battery**

35. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

36. Defendants ERICKSON, PASTRAN and DESIDERATO made offensive contact with or caused plaintiff to suffer the offensive contact of handcuffing without privilege or consent.

37. As a result of defendants ERICKSON, PASTRAN and DESIDERATO's conduct, plaintiff suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

38. THE CITY is vicariously liable for the conduct of defendants ERICKSON, PASTRAN, DESIDERATO.

**FOURTH CAUSE OF ACTION****New York State Constitutional Violations**

39. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

40. Defendants ERICKSON, PASTRAN and DESIDERATO subjected plaintiff to the foregoing acts and omissions without due process of law, thereby depriving plaintiff of rights, privileges, and immunities guaranteed by Article 1 § 12 of the New York State Constitution.

41. As a direct and proximate result of defendants ERICKSON, PASTRAN and DESIDERATO's deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, plaintiff suffered the injuries and damages set forth above.

42. THE CITY is vicariously liable for the conduct of defendants ERICKSON, PASTRAN and DESIDERATO.

**WHEREFORE**, plaintiff demands judgment and prays for the following relief, jointly and severally, against the defendants:

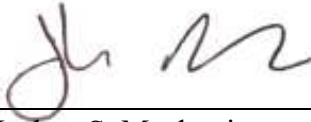
- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against defendants ERICKSON, PASTRAN and DESIDERATO in an amount to be determined by a jury;
- (C) reasonable attorneys' fees;
- (D) the costs and disbursements of this action;
- (E) interest; and
- (F) such other and further relief as appears just and proper.

Dated: New York, New York  
September 25, 2020

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By:   
Jason Leventhal

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By:   
Joshua S. Moskowitz

*Attorneys for Plaintiff Lasou Kuyateh*

**ATTORNEY VERIFICATION**

STATE OF NEW YORK     )  
                                      : ss.:  
COUNTY OF NEW YORK    )

JASON LEVENTHAL, being duly sworn, deposes and says:

I am an attorney for the plaintiff in the within action and my office is located at 125 Maiden Lane, Suite 5C, New York, New York 10038, which is within the County of New York. This verification is made by me because the plaintiff is not within the County of New York, which is the county where I have my office.

I have read the foregoing Verified Complaint and know its contents. The factual allegations are made upon information and belief, and are based on my inquiries, the contents of our files, and discussions I have had with plaintiff. The Complaint is true to my knowledge, except as to matters alleged on information and belief, and as to those matters, I believe them to be true.

Dated: September 25, 2020

  
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JASON LEVENTHAL